Stephen Russell
[redacted]
Reno, NV, 89431
[redacted]
Email: [redacted]

STEPHEN RUSSELL, IN PRO PER

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF SAN FRANCISCO

STEPHEN RUSSELL Plaintiff(s), vs. STEPHEN WALSH, an individual; MAURA WALSH, an individual; TARA WALSH, an Individual Defendant(s).	Case No.: CGC-20-588105 **MOTION FOR SUMARY JUDGMENT** **DEPT: 610** Judge: Anne-Christine Massullo Dept: 610 Action Filed: October 31, 2023 Trial Date: Unassigned

MOTION FOR DEFAULT JUDGEMENT

I, Plaintiff, Stephen Russell, hereby move this Court for a default judgment against Defendants, Tara Walsh and Maura Walsh, on the following grounds:

Failure to Respond: Despite being properly and evidently served with the complaint in 2020, the defendants have failed to respond within the time frame specified by law.

Public copy: the child's legal name is shown as E.V.; private street addresses, personal phone numbers and email addresses, and a private individual's name and signature are removed. Data on the three blank final pages that our PDF readers could not decode is withheld. The original is preserved.

Proper Service: The defendants were properly served with the summons and complaint, ensuring they were given adequate notice of the lawsuit. Evidence of service, including photos of the defendants being served, is shown in the previously filed *Response to Order to Show Cause.*

Sufficient Pleadings: The complaint sufficiently states a claim upon which relief can be granted, detailing the kidnapping and subsequent actions taken by the defendants.

Proof of Claim: The facts of this case were deeply explored in sworn depositions and a week-long trial relating to the battery, abuse, and drugging of Mr. Russell.

No Excusable Neglect: The defendants have shown a significant pattern of claimed evasion of service, with no valid reason for their failure to respond. In one of the defendant's depositions, Maura Walsh's attorney Frank Moore claims that the two cases (CGC-18-570137 and this case CGC-20-588105) "should be merged," showing knowledge of this case. In that same deposition, Maura Walsh claims to be "harassed" in regards to service from this court, as well as not "know[ing] what to do with all these documents."

No Pending Motion to Set Aside Default: To the best of the plaintiff's knowledge, no motion to set aside the default has been filed by the defendants.

Calculation of Damages: The plaintiff will provide a clear calculation or basis for the damages sought at a subsequent hearing, if necessary.

Compliance with Local Rules: All local rules regarding default judgments have been complied with.

No Meritorious Defense: The defendants have not presented any defense, let alone one that might have merit.

Public Policy: Granting a default judgment promotes judicial efficiency, especially given the defendants' refusal to participate in the legal process.

The defendants' actions, including the kidnapping of E.V. across state lines under a court order, the false claims regarding Mr. Russell's mental health, and the subsequent evasion of service, demonstrate a clear and intentional disregard for the legal process. The defendants have knowingly lied and conspired against Mr. Russell, causing significant harm and distress, and disregarding the wellbeing of his child E.V. by kidnapping her from her father after he was awarded full custody.

Given the above reasons and the evidence presented, Plaintiff respectfully requests that this Court grant a default judgment in favor of Plaintiff and against Defendants, Tara Walsh and Maura Walsh, and for such other and further relief as the Court deems just and proper.

DATED: Jan 10, 2023.

STEPHEN RUSSELL
In Pro Per

Stephen Russell
[redacted]
Sparks, NV 89431
[redacted]
Pro se

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
10/26/2023
Clerk of the Court
BY: SHIRLEY LE
Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA[1]
COUNTY OF SAN FRANCISCO
UNLIMITED JURISDICTION

STEPHEN RUSSELL, an individual

Plaintiff,

V.

STEPHEN WALSH, an individual; MAURA WALSH, an individual; TARA WALSH, an Individual

Defendants.

CASE NO.CGC-20-588105

DECLARATION OF STEPHEN RUSSELL IN RESPONSE TO ORDER TO SHOW CAUSE

Department: 610
Hearing Date: Oct 31, 2023
Time: 10:30 am

Action Filed: Feb 6, 2023
Trial Date: none set

DECLARATION OF STEPHEN RUSSELL

When Tara K. Walsh was caught drugging and abusing Stephen G. Russell in 2018, she fled to the airport, abandoning her infant daughter. The Walsh family then conspired to kidnap E.V. *and bring her to their gated family compound in Chappaqua, New York where she has remained. In February of 2022, a San Francisco jury found Ms. Walsh liable for drugging, domestic abuse and intentional infliction of harm. They rejected the rationale that there was any reasonable explanation for Walsh's actions, calling them "outrageous" and done with "malice." In September 2023, the First District Appellate Court affirmed that ruling. The Walsh family's civil kidnapping of* E.V. *is the subject matter of this case.*

I, Stephen Russell, declare the following facts are within my personal knowledge and, if called as a witness herein, I can and will competently testify thereto. I am plaintiff in the above captioned matter. I am presently unrepresented by counsel in this matter as my former counsel withdrew from representing me in this action on or about June 29, 2022. I will be appearing in person at the hearing on Oct 31, 2023 at 10:30 am to demonstrate my compliance since the Order to Show Cause was issued.

I would like to correct my contact information, since I have discovered that as recently as August 2023, my previous attorney Brian Waller has been receiving mail on my behalf. I have not had any communications with Brian since he withdrew as my attorney in February 2023. My current mailing address is: [redacted], **Sparks, NV, 89431.** My current phone number and email are: [redacted] and [redacted].

Additionally, I would like to apologize. I have been in trial and appeal of recently affirmed case RUSSELL v. WALSH (Superior Court of California Count of San Francisco, Case no. CGC-18-570137), where charges of battery, intentional infliction of emotional distress, and domestic violence were filed against Tara Walsh who was caught drugging my wine in 2018. This is particularly relevant given the extreme overlap in evidence with this case. Attorney for the Walsh's Frank S. More explicitly stated that he felt this case and case no.CGC-18-570137 should have been merged.

I would also like to state that I am currently unrepresented, as my previous attorneys have withdrawn after receiving threats to their licenses via phone call from the defendant in this case, Stephen Walsh (A recording of the phone calls will be available at the hearing).

Additionally, in the recently affirmed case mentioned above, there is a pattern of service avoidance and abuse of service that has been documented, which resulted in unnecessary legal fees. The depositions and testimony of Stephen Walsh, Maura Walsh, and Tara Walsh from the above mentioned case (RUSSELL v. WALSH, Case no. CGC-18-570137) include direct acknowledgement of receipt of service materials relating to this case.

In their depositions, the Walsh family specifically referred to receipt of service as "harassment." Tara Walsh's sister Brienne Walsh testified in her deposition and in an article that

they had been instructed by her parent to throw all subpoenas from this court "in the trash" (Transcript Brienne Walsh Deposition Sept 28, 2020).

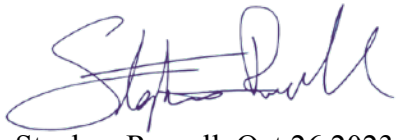
In both cases, service has always occurred through multiple channels including but not limited to: Service by Sheriff at the Walsh family home, their places of business, or clubs by a licensed private investigator. Service was also provided by mail and email, per the Walsh family's written request. Service was also filed through Albany NY confidential address program, which allows for automatic service of protected persons. Though the address was listed as private, Walsh testimony clarified they were all "living together at [redacted]" when the Chappaqua Sheriff Christopher Barnett filed an Affidavit of Service noting seeing family members through a window (Exhibit A).

In this declaration I am providing both previously existing evidence of Stephen Walsh, Maura Walsh, and Tara Walsh's knowledge of this case's existence as well as previously unshared evidence proving that Maura Walsh has, in fact, been served and has knowledge of this case. Provided below this declaration will be the full set of exhibits from the previous declaration ranging from EXHIBITS A-H, and EXHIBITS I-K are the newly included evidence.

I would also like to request a motion for Summary Judgement or Default Judgement and sanctions for the Walsh family's repeated conduct along with emergency restraint of such conduct moving forward.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed this 26th day of October, 2023.



Stephen Russell, Oct 26 2023

EXHIBIT A

EXHIBIT A

WESTCHESTER COUNTY
DEPARTMENT OF PUBLIC SAFETY
SHERIFF'S CIVIL UNIT
THOMAS A. GLEASON
COMMISSIONER - SHERIFF

110 DR MARTIN LUTHER KING JR BLVD – ROOM L217 – WHITE PLAINS – NEW YORK – 10601

LAW OFFICES OF HOOK & HOOK
430 EAST OAKVIEW DRIVE
SUITE 101
WAYNESBURG, PA 15370

1/15/2021
ATTORNEY FILE:
SHERIFF FILE: 21000014

RE: STEPHEN G RUSSELL v. STEPHEN WALSH, MAURA WALSH, TARA WALSH

Process returned herewith (for reason checked below)

- [XXXX] Subject moved. Left no forwarding address
- [ ] We had insufficient time for service. Please re-date and return.
- [ ] Not known at address given
- [ ] No such number or street address
- [ ] No longer employed at given location
- [ ] Has mail and telephone privileges only at address given
- [ ] Reported out-of-town
- [ ] Vacant at address
- [ ] Please furnish us with better residence / business address
- [ ] Not deliverable – address is a P.O. Box
- [ ] Numerous attempts made at service. We were unable to make contact.
- [ ] Out of business
- [ ] Different business at location
- [ ] Returned by request
- [ ] Not listed in Building Directory – No apartment given.
- [ ] Evading Service
- [ ] Unable to gain entry at business or residence address
- [ ] Employer does not allow service or process upon employees
- [ ] No accounts in name given.
- [ ] Account balance is below minimum required for levy/Funds are exempt from levy.
- [ ] Account balance is zero or overdrawn.
- [ ] Account in multiple names - Turnover order needed.
- [ ] No reply to demand made on
- [ ] Execution expired – no leviable assets
- [ ] Judgment unsatisfied
- [ ] Case Closed
- [ ] See Remarks

Remarks: Stephen Walsh was served, however he stated the both Maura and Tara Walsh no longer lived at the given address. Walsh also stated he would not provide me with their current address.

Sincerely,
Police Officer: Christopher Barnett

SHERIFF'S CERTIFICATE OF SERVICE (C.P.L.R. 306)

SUPERIOR COURT
STATE OF NEW YORK
COUNTY OF SAN FRANCISCO **INDEX: CGC-20-588105**

STEPHEN G RUSSELL Plaintiff/Petitioner

-against-

STEPHEN WALSH, MAURA WALSH, TARA WALSH Defendant/Respondent

I, Thomas A. Gleason, Commissioner-Sheriff of the County of Westchester, State of New York do hereby certify that on 1/14/2021 at 6:54 PM service was effected of the annexed SUMMONS AND COMPLAINT, FIRST AMENDED COMPLAINT, NOTICE OF CASE MANAGEMENT CONFERENCE in the above entitled action or proceeding by my undersigned Police Officer CHRISTOPHER BARNETT, upon STEPHEN WALSH the person named therein as defendant in said action or proceeding at [redacted] CHAPPAQUA, NY 10514 .

Defendant Description:

Approximate Age: 50/55	Sex: MALE
Approximate Weight: 175	Height: 5' 10"
Color of Skin: WHITE	Hair: GREY

I asked STEPHEN WALSH if he is a member of the military and he responded, "No."

Date: Friday, January 15, 2021

Police Officer CHRISTOPHER BARNETT 1024
Sheriff File: 21000014

Thomas A. Gleason
Commissioner-Sheriff
Westchester County

SHERIFF'S CERTIFICATE OF ATTEMPTED SERVICE

SUPERIOR COURT
STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO **INDEX: CGC-20-588105**

STEPHEN G RUSSELL Plaintiff/Petitioner

-against-

STEPHEN WALSH, MAURA WALSH, TARA WALSH Defendant/Respondent

I, Thomas A. Gleason, Commissioner-Sheriff of the County of Westchester, State of New York do hereby certify that service in the above entitled action or proceeding was attempted by my undersigned Police Officer CHRISTOPHER BARNETT. The deponent personally attempted to serve, with due diligence, the annexed SUMMONS AND COMPLAINT, FIRST AMENDED COMPLAINT, NOTICE OF CASE MANAGEMENT CONFERENCE on a number of occasions but has been unsuccessful. The last attempt was made on 1/14/2021 at 6:54 PM at [redacted] CHAPPAQUA, NY 10514 . Additional attempts are documented below.

Service attempts:
Date: 1/14/2021 @ 6:54 PM - [redacted] CHAPPAQUA, NY 10514

The deponent was unable to serve MAURA WALSH for the following reasons: She no longer lives at the given address

Date: 1/15/2021

Police Officer CHRISTOPHER BARNETT 1024
Sheriff File: 21000014

Thomas A. Gleason
Commissioner-Sheriff
Westchester County

SHERIFF'S CERTIFICATE OF ATTEMPTED SERVICE

SUPERIOR COURT
STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO **INDEX: CGC-20-588105**

STEPHEN G RUSSELL Plaintiff/Petitioner

-against-

STEPHEN WALSH, MAURA WALSH, TARA WALSH Defendant/Respondent

I, Thomas A. Gleason, Commissioner-Sheriff of the County of Westchester, State of New York do hereby certify that service in the above entitled action or proceeding was attempted by my undersigned Police Officer CHRISTOPHER BARNETT. The deponent personally attempted to serve, with due diligence, the annexed SUMMONS AND COMPLAINT, FIRST AMENDED COMPLAINT, NOTICE OF CASE MANAGEMENT CONFERENCE on a number of occasions but has been unsuccessful. The last attempt was made on 1/14/2021 at 6:54 PM at [redacted] CHAPPAQUA, NY 10514 . Additional attempts are documented below.

Service attempts:
Date: 1/14/2021 @ 6:54 PM - [redacted] CHAPPAQUA, NY 10514

The deponent was unable to serve TARA WALSH for the following reasons: She no longer lives at the given address

Date: 1/15/2021

Police Officer CHRISTOPHER BARNETT 1024
Sheriff File: 21000014

Thomas A. Gleason
Commissioner-Sheriff
Westchester County

EXHIBIT B

EXHIBIT B

Robert A. Hufnagel, Esq. SBN: 210280
RESNICK & LOUIS, P.C.
3350 Shelby Avenue, Suite 200
Ontario, CA 91764
Telephone: 909.458.0110
Facsimile: 909.281.3510
Email: rhufnagel@rlattorneys.com

Stephen Russell,

Plaintiff,

v.

NIR MAMAN, an individual; CT707 ISRAELI KRAV SYSTEMS, INC., an Ontario corporation; GEORGE AKKELQUIST, an individual; DFW METROPLEX TRAINING ACADEMY, a Texas entity form unknown; RYAN MICHELETTI, an individual; LEGION INDUSTRIES, INC., a California entity form unknown; and DOES 4 Through 20, Inclusive;

Defendants,

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

CASE NO.: 3:18-CV-06691-RS (SK)

AFFIDAVIT OF SERVICE

State of New Jersey)
) SS
County of Bergen)

Alexander Saavedra, being duly sworn, deposes and says:

1. I am over the age of 18, and I am a licensed private detective in the State of New Jersey, NJ License No. 8710, 259 Union Street, Hackensack, NJ 07601, Phone : 201-646-1715.
2. I am not related to any of the parties by blood or marriage.
3. On February 6th 2021, I served Subpoena and Notice of Depostion on Tara Walsh by personal service to Stephen Walsh at [redacted], Chappaqua NY 10514. The residence addressed [redacted] has a gated entrance which opened automatically. The residence sits at the end of a long driveway. I approached the side door of the residence which had an open door and a closed glass storm door. On the inside of the storm door, was a child of approximately 2 years of age, who was later identfified from open sourced social media as Tara Walsh's daughter. A slim figured woman with blonde hair, later identified as Tara Walsh, came forward, looked at me, and took the child away. The lights inside went out there was no answer from the door bell. I was then apprached by a gentleman who had just drove onto the property. The Gentleman was of approximately 60 years of age. I informed him that I had a subpoena for Tara Walsh.

The man said that Tara is often visited for service of Subpoenas and is therefore leary of same. This gentleman, later identified as Mr. Stephen Walsh, Tara's Father, was quite pleasant and stated " I will accept it" (the subpoena). He was then served.

On this 4th day of February 2021, Alexander Saavedra appeared before me

Notary Public

Alexander Saavedra

Daniel J Winters
NOTARY PUBLIC
State of New Jersey
My Commission Expires April 4, 2024



EXHIBIT C

EXHIBIT C

TARA WALSH
SELF REPRESENTED PARTY
[redacted]
Chappaqua, NY 10514
Telephone: [redacted]

Defendant TARA WALSH

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
03/09/2022
Clerk of the Court
BY: ERNALYN BURA
Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

STEPHEN RUSSELL, an individual, Plaintiff, v. TARA WALSH, an individual; and DOES 1-20, Defendants.	Case No. CGC-18-570137 **PROOF OF SERVICE**

PROOF OF SERVICE

I, the undersigned, declare as follows:

I am resident of Chappaqua, State of New York. I am over the age of eighteen (18) and am not a party to this action. My business address is [redacted], Chappaqua, NY 10514.

On the date set forth below, I served the document(s) entitled:

on the party in pro per in this action as follows:

DEFENDANT'S NOTICE OF INTENTION TO MOVE FOR A NEW TRIAL

BRIAN D. WALLER (admitted pro hac vice), PECKER & ABRAMSON, P.C.

1325 Avenue of the Americas, 10th Floor, New York, NY 10019

Phone: 212-382-0909 Email: bwaller@pecklaw.com

X [BY STANDARD POSTAL DELIVERY] I placed each in an envelope or package designated byUSPS with delivery fees paid or provided for, addressed to the person listed above and delivered to the facility regularly maintained by USPS pursuant to Code of Civil Procedure section 1013, subdivision (c).

X [BY ELECTRONIC TRANSMISSION] I transmitted a copy of what was sent by Federal Express to email address bwaller@hooklaw.com listed on the Notice of Substitution of Counsel Judicial Council form served on me pursuant to Cal.Rules of Court, Rule 2.251, subdivision (a).

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

DATED: March 9, 2021

Maura Walsh

EXHIBIT D

EXHIBIT D

SUPERIOR COURT OF CALIFORNIA
County of San Francisco

STEPHEN RUSSELL, an individual Plaintiff, vs. TARA WALSH, an individual; and DOES 1-20, Defendants.	Case Number: CGC-18-570137 **CERTIFICATE OF SERVICE BY MAIL AND BY EMAIL** (CCP 1013a (4))

I, Kimberly M. Septien, a Deputy Clerk of the Superior Court of the County of San Francisco, certify that I am not a party to the within action.

On March 4, 2022, I served the attached **JUDGEMENT ON JURY VERDICT** filed on March 3, 2022, by placing a copy thereof in a sealed envelope, addressed as follows:

BRIAN D. WALLER, ESQ.
Peckar & Abramson, P.C.
1325 Avenue of the Americas, 10th Floor
New York, NY 10019

TARA WALSH
[redacted]
Chappaqua, NY 10514

and, I then placed the sealed envelopes in the outgoing mail at 400 McAllister Street, San Francisco, CA. 94102 on the date indicated above for collection, attachment of required prepaid postage, and mailing on that date following standard court practices. I also emailed the document on March 3, 2022, to the following:

a. bwaller@pecklaw.com
b. [redacted]

Dated: March 3, 2022

T. MICHAEL YUEN, Clerk

By: _____
Kimberly M. Septien, Deputy Clerk

EXHIBIT E

EXHIBIT E

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

IN THE CITY AND COUNTY OF SAN FRANCISCO

BEFORE THE HONORABLE GARRETT L. WONG, JUDGE

DEPARTMENT 504

---OOO---

STEPHEN RUSSELL, Plaintiff, vs. TARA WALSH, et al., Defendant	CASE NO. CGC-18-570137

REPORTER'S TRANSCRIPT OF PROCEEDINGS

Wednesday, February 16, 2022

Reported by Angie Diner, RMR, CRR, CSR 9581

A P P E A R A N C E S:

FOR Plaintiff Stephen Russell:

PECKAR & ABRAMSON, P.C.
BY: BRIAN WALLER, ATTORNEY AT LAW
1325 Avenue of Americas, 10th Floor
New York, New York 10019
212.382.0909
Bwaller@pecklaw.com

FOR Defendant In Pro Per:

TARA K. WALSH
[redacted]
Chappaqua, New York 10514
[redacted]
[redacted]

EXHIBIT F

EXHIBIT F

TARA WALSH
SELF REPRESENTED PARTY
[redacted]
ACP 4590 , P.O. Box 1110
Albany, N.Y. 12201-1110 Telephone: [redacted]

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
03/21/2022
Clerk of the Court
BY: RONNIE OTERO
Deputy Clerk

Defendant in Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN FRANCISCO

STEPHEN RUSSELL, an individual, Plaintiff, v. TARA WALSH Defendant	Case No. CGC-18-570137 **DEFENDANT DECLARATION IN SUPPORT OF MOTION FOR JUDGEMENT NOTWITHSTANDING THE VERDICT** Judge: Hon, Garret Wong Department: 504 Trial Date: February 14, 2022 Time: 9:30 AM Action Filed: September 26, 2018

DECLARATION OF TARA WALSH

I, TARA WALSH, am the named defendant in the above-referenced matter. I have personal knowledge of each fact stated in this declaration.

1. Before trial, Plaintiff's counsel told this court they had evidence that I "drugged" Plaintiff that they did not present at trial. This evidence was significant, included alleged texts to friends and family I "drugged" Plaintiff. At a hearing before this court, Plaintiff's counsel stated "There were previous

2. I do not believe that a clear case was presented to the jury. During deliberations, the jury asked "how should we define "touch" in regards to this case. Is it the ingestion of the Seroquel". If they did believe the "touch" was Plaintiff ingesting Seroquel, it is extremely relevant that he took it willingly for years. Them not knowing this information significantly hindered my defense.(See **EXHIBIT 2**).

3. I have had full-stay away Orders of Protection against Plaintiff for almost 4 years that extend until 2024. I recently was awarded permanent legal and physical custody of our daughter in New York (for the second time). The New York Courts investigation on Plaintiff and I have been extremely extensive, including forensic evaluations, substance abuse evaluations, and drug testing. The last time Plaintiff was in New York Family Court for a custody hearing he failed a drug and alcohol test **(EXHIBIT 3).** At this test, he tested positive for opioids, amphetamines and alcohol. Again, a critical piece of evidence I was unable to submit to indicate his substance abuse of prescription medication and alcohol.

4. The family courts in New York have a long history of dealing with Plaintiff. In this history, they have stated his behavior is "disturbing" and concerns about his "mental health". This history was extremely relevant as Plaintiff has also been in contempt of court many times, which directly speaks to the credibility in the testimony he gave to the jury. Plaintiff does not respect the court process and has a history of lying- directly to Judge's faces. Example of such is transcript as **EXHIBIT 4.**

5. The first day of trial, Judge Wong granted Plaintiff's Motion to in Limine gutting my entire defense. The critical topics I was barred from addressing were Plaintiff's prescription drug history, his history of mental illness, my order of protection against him and his history of extensive abuse of the judicial process. This includes a separate lawsuit suing my parents and I in San Francisco and a duplicate lawsuit filed for "drugging" in New York with a cause of action being negligence, which directly contradicts the cause of action in this complaint. This history is relevant to establish

the history of domestic abuse at the hands of Plaintiff and the complexity in my fear of him. The Motion in Limine granted by the court are **EXHIBIT 5**.

6. Plaintiff's accusations of my abuse have gotten increasingly more factitious as time has gone on. In his original request for a restraining order in 2018, he did not speak of any "stabbing" of a cellphone like he presented to the jury (See original order as **EXHIBIT 6**). This is because that story was made up and Plaintiff has no problem lying under oath. Each court case Plaintiff loses, the more elaborate his stories get in order to have a "win". The court should have never allowed this to happen as this information was never given in any discovery- and is made up.

7. Another tall tale that Plaintiff gave to this jury was that he obtained my personal data due to me conveniently downloading it on his computer. Plaintiff has also stated he got this data from a "criminal investigation", such as in a presentation of evidence to the forensic evaluator in New York (**EXHIBIT 7**). I had evidence at trial to impeach that Plaintiff got my data with my consent, which the court would not allow me to share. In them not doing so, I looked like a liar, which I am not.

8. Plaintiff was harassing and intimidating everyone close to me before trial. He did this in order to intimidate anyone from testifying. Plaintiff posted the depositions of my friends and family- all of whom live in New York and know nothing about the events in May of 2018- all over the internet. I asked this court for a protective order which they refused **(EXHIBIT 8)**. When I refused to give a name of a witness on my witness list before trial to protect her from online harassment from Plaintiff, Judge Wong knew this months before trial but did not order me to give the name. Plaintiff's counsel also knew this and never asked for the name. My most critical witness, who directly could speak to witnessing Plaintiff's paranoia, delusions and bizarre behavior when I was across the country, was barred from testifying. She also could have testified that Plaintiff gave her a medication I believe was Seroquel in California when I was in New York. I was left with the ability to present no witness at the trial, which was not fair.

9. Plaintiff's cruel and harassing behavior towards everyone who has helped me over the past 4 years has no limits. He went so far as to harass my family attorney in New York to the point my lawyer was in fear for the safety of his family. This history was critical for a jury to know about to understand the level of abuse I have suffered from this man. (See declaration stating such as **EXHIBIT 9).**

10. I was given one hour on the last day of trial to present my evidence and testimony. I do not think this was fair. I was unable to establish the complex, unpredictable and terrorizing history of Plaintiff's abuse towards me. This includes not being able to discuss his stalking, sexual abuse, financial coercion, isolation and threats, forcible confinement, psychological abuse and threats of violence. Without this history, I could not establish why I acted in self-defense.

11. Plaintiff is a textbook domestic abuser. I know this because I have spent years in therapy and counseling with various domestic violence organizations. Due to this, I am close to many other DV victims and have helped give support to other DV victims. I have done many DV Risk Assessments, in which Plaintiff's continued obsessive and aggressive behavior in court indicates he is still a great danger to our daughter and I. It is extremely humiliating and traumatizing for me to have to re-run the same issues over and over again in courts. It also has prevented me from working and healing. It is completely unnecessary.

12. From the first onset of Plaintiff's extremely disturbing mental episodes and refusal to get proper medical treatment, I ended our relationship and returned to New York. Although we had a few brief encounters, I very much was intent on moving on in my life and raise our daughter alone. I only came back to San Francisco with our infant daughter due to Plaintiff's financial coercion in early 2018. I have done whatever I can to stay as far away from Plaintiff as possible. He has done the opposite and continues to do whatever he can to be back in control of my life.

13. Plaintiff is extremely wealthy. To my knowledge, he has hundreds of millions of dollars in various assets, primarily from early technology investments. He knows I have no money. Plaintiff sued me to harass me and overwhelm me with litigation in an attempt to blackmail me

into letting him back into my life. Since our daughter was born, financial coercion has been his most effective and devastating form of abuse. Currently, after the latest trial, I lost my two consulting clients and am currently applying for food stamps. I am struggling to provide for our daughter. Simultaneously, Plaintiff is trying to cut the small amount of child support he pays. The judgment of $325,000 with 10% interest will bury me financially for the rest of my life. It also will keep me chained to Plaintiff and in a completely unnecessary cycle of abuse. From my research and experience with DV victims, I think the court has a long way to go in protecting victims and something has to change. I understand this is a very unique situation.

14. The longer domestic violence goes on, the smaller and smaller a victims world becomes. That is what has happened here. As I have been under attack in litigation, so has my entire support system, including those in the court system. Plaintiff has gone so as suing a family court judge in New York who first gave me permanent custody and a two year order of protection.. I can count at least 13 different judges who have been involved in endless complaints and appeals- all of which have included accusations of drugging. In constantly reliving my trauma, I have a hard time leaving the house. For four years, I continue to drown in Plaintiff's abuse. I am aware I am not a lawyer, but I also am not a superhero. I have done my very best in this court proceeding but without the ability to afford legal counsel I have failed. I also was unable to represent myself in trial effectively due to my trauma. I lost the second Plaintiff filed the lawsuit, and that is why he prolonged trial for as long as possible.

15. During trial, I had a panic attack. I told the judge I could not properly represent myself due to my trauma and own mental issues. I did myself to stand up to Plaintiff's abuse, including him submitting forged texts, undermining my abuse, and lying in his testimony, but in doing so I was constantly reprimanded by the court and undermined by Plaintiff's lawyer. After the judge said he would sanction me, I gave up and stopped objecting. Plaintiff came to court for ½ of a day and testified for a short period. He was calm and credible. On the other hand, I appeared unstable, aggressive, defiant, and inconsistent. I was given 1 hour to present my case.

16. Currently, although I support our daughter knowing all of her family, I am too scared to even have her do visits with Plaintiff's mother due to the financial backlash. Any thread of

connection to my life he gets, I expose myself to liability in litigation costs. I am worried about our daughter's future in any involvement with her father for the same reasons.

I declare under penalty of perjury under the laws of the State of California and the State of New York that the foregoing is true and correct.

Signed this 21st of March, 2022, in Chappaqua, New York.

By: _____
TARA WALSH

EXHIBIT G

EXHIBIT G

DEMOVSKY LAWYER SERVICE
Premier Nationwide Document Retrieval and Process Service Company
800-443-1058

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO

----------X

STEPHEN RUSSELL,

Case No. CGC-20-588105

Plaintiff(s),

-against-

AFFIDAVIT OF SERVICE

STEPHEN WALSH, ET AL,

Defendant(s).

----------X

STATE OF NEW YORK)
S.S.
COUNTY OF NEW YORK)

BRENDAN COLLISHAW, being duly sworn, deposes and says that he is over the age of eighteen years, is employed by the attorney service, D.L.S., Inc., and is not a party to this action.

That on the 30TH day of JANUARY, 2023, at approximately the time of 9:45AM, on the 31ST day of JANUARY, 2023, at approximately the time of 12:00PM, and on the 2ND day of FEBRUARY, 2023, at approximately the time of 4:50PM, deponent attempted to serve a true copy of the SUMMONS, COMPLAINT, FIRST AMENDED COMPLAINT, & CIVIL CASE COVER SHEET upon TARA WALSH at [redacted], BRIARCLIFF MANOR, NY 10510 but THERE WAS NO ANSWER AT THAT ADDRESS.

At that time, therefore, deponent served a true copy of the foregoing papers upon TARA WALSH by firmly affixing same conspicuously on the front door at that address, the actual place of TARA WALSH.

#286852

D.L.S., Inc.
400 Rella Blvd.
Ste. 165
Suffern, NY 10901
845-639-7559
www.dlsnational.com

DEMOVSKY LAWYER SERVICE
Premier Nationwide Document Retrieval and Process Service Company
800-443-1058

That on the 3RD day of FEBRUARY, 2023, deponent served another copy of the foregoing upon TARA WALSH by first class mail, by enclosing a true copy thereof in a securely sealed and postpaid wrapper with the words "PERSONAL AND CONFIDENTIAL" written on the same envelope, and not indicating on the outside that it is from an attorney or concerns an action against the person to be served, and depositing the same into an official depository maintained by the Government of the United States, Village of Florida, State of New York, addressed as follows:

TARA WALSH
[redacted]
BRIARCLIFF MANOR, NY 10510

BRENDAN COLLISHAW

Sworn to before me this
3RD day of FEBRUARY, 2023

NOTARY PUBLIC

JONATHAN RIPPS
NOTARY PUBLIC, STATE OF NEW YORK
Registration No. 01RJ6109718
Qualified in New York County
My Commission Expires May 17, 2024

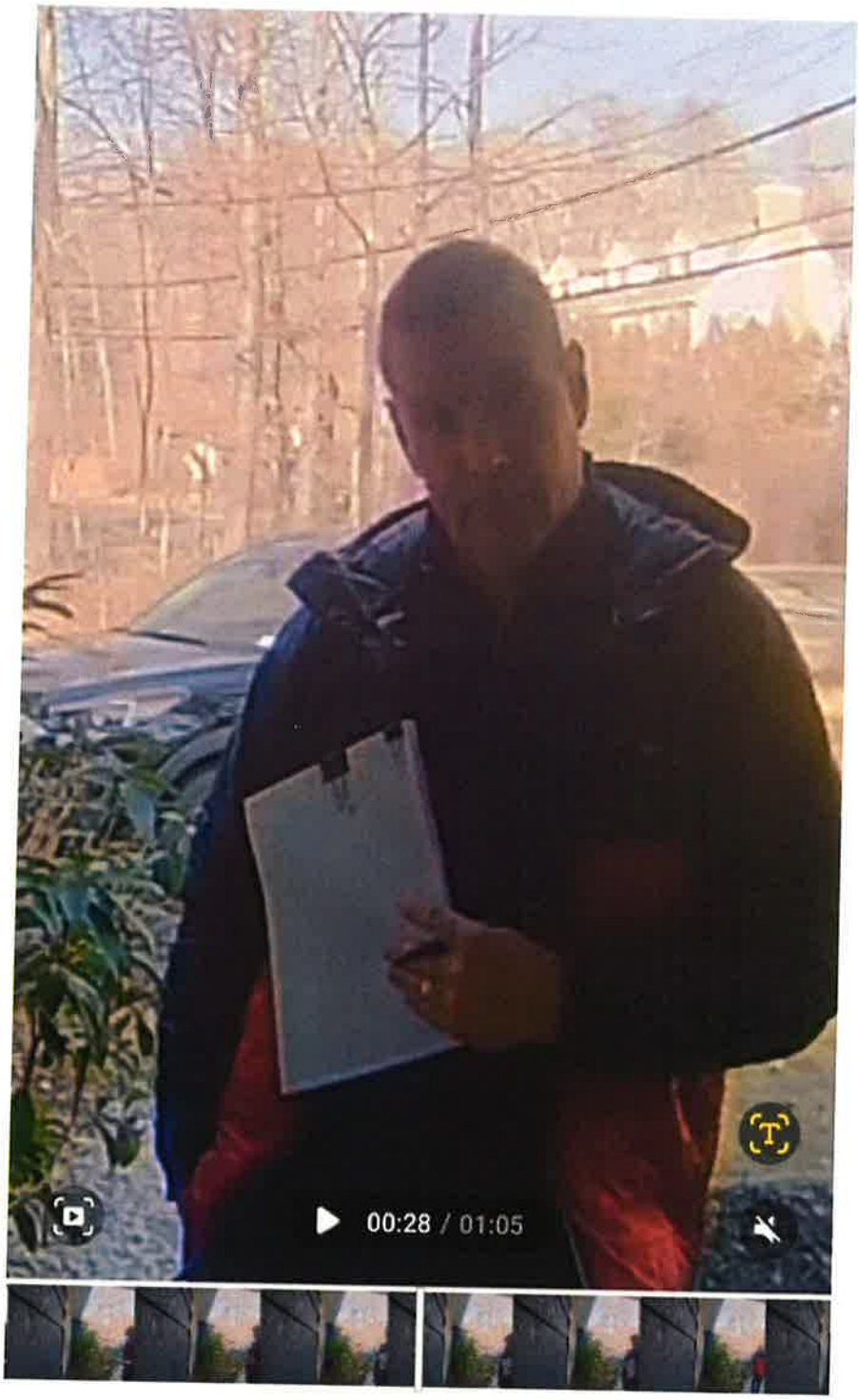
#286852

D.L.S., Inc.
400 Rella Blvd.
Ste. 165
Suffern, NY 10901
845-639-7559
www.dlsnational.com

EXHIBIT H

EXHIBIT H

7:36 • 5G UC 46%



ttps://mail.google.com/mail/u/0/?tab=rm&ogbl#inbox?projector=1

EXHIBIT I



Maura Walsh being served at her Tennis Club in Chappaqua, New York

EXHIBIT I

EXHIBIT J



April 22, 2021 (Russell v. Walsh CGC-18-570137) Transcript

Maura Walsh states that the service received is “harassment” and, that she “can’t possibly keep track of all of these documents. (1:22:03).

EXHIBIT J

EXHIBIT K

EXHIBIT K

Filed 9/15/23 Russell v. Walsh CA1/4

NOT TO BE PUBLISHED IN OFFICIAL REPORTS

California Rules of Court, rule 8.1115(a), prohibits courts and parties from citing or relying on opinions not certified for publication or ordered published, except as specified by rule 8.1115(b). This opinion has not been certified for publication or ordered published for purposes of rule 8.1115.

IN THE COURT OF APPEAL OF THE STATE OF CALIFORNIA

FIRST APPELLATE DISTRICT

DIVISION FOUR

STEPHEN RUSSELL, Plaintiff and Respondent, v. TARA WALSH, Defendant and Appellant.	A165356 (City & County of San Francisco Super. Ct. No. CGC-18-570137)

Stephen Russell sued Tara Walsh for battery, intentional infliction of emotional distress, and domestic violence (Civ. Code, § 1708.6, subd. (a)), and a jury found her liable for all three torts. Walsh, who represented herself at trial and does so again on appeal, argues that the evidence is insufficient to support the jury's verdict. She also contends that the trial court erred in declining to continue the trial when she told the court about her mental health issues. Finding none of these arguments persuasive, we affirm the judgment.

The parties are familiar with the facts and our opinion does not meet the criteria for publication. (Cal. Rules of Court, rule 8.1105(c).) We confine our discussion to the information that is relevant to our conclusions and to our statement of the reasons that have led us to them. (See Cal. Const., art. VI, § 14; *Lewis v. Superior Court* (1999) 19 Cal.4th 1232, 1262.)

DISCUSSION

1. The Trial Court Acted Within Its Discretion in Electing Not to Continue the Trial

Walsh argues that the trial court "erred in refusing to continue the trial when . . . Walsh expressed that she was having mental health issues." We disagree.

"The court may grant a continuance only on an affirmative showing of good cause requiring the continuance." (Cal. Rules of Court, rule 3.1332(c).) "A trial court has broad discretion in ruling on a motion for a continuance. [Citation]. It is the duty of the trial court to vigorously insist upon cases being heard and decided in the most timely manner possible, unless there are compelling reasons to the contrary." (*Midwest Television, Inc. v. Scott, Lancaster, Mills & Atha, Inc.* (1988) 205 Cal.App.3d 442, 456.) "Unnecessary continuances are wasteful, nonproductive, time-consuming and a fertile ground for criticism by the public of the courts." (*County of San Bernardino v. Doria Mining & Engineering Corp.* (1977) 72 Cal.App.3d 776, 781.) "A trial court has great discretion in the disposition of an application for a continuance. Absent a clear abuse of discretion, the court's determination will not be disturbed." (*Estate of Smith* (1973) 9 Cal.3d 74, 81.)

According to Walsh, there was good cause to continue her trial because she told the court that she was "not mentally fit to go through the trial" and offered to "obtain[] a letter from her psychiatrist" to the same effect. However, when Walsh first made the request for a continuance, the jury had been sworn and she had just delivered an opening statement in propria persona. Having observed that opening statement, the trial court could reasonably conclude that Walsh was able to proceed despite any difficulties.

The trial court buttressed that conclusion after Walsh faced direct examination: "[T]he Court is not precluding you from [presenting] the [psychiatrist's] note, but I will also tell you that if you wish to continue this case in some form or fashion, that I will require under the law good cause. So far I've not seen a good cause basis." As the trial court observed, Walsh had "been able to withstand the examination by" opposing counsel, and "seem[ed] to have the ability to understand the nature of the proceedings, what's going on, and to proceed with the case." Moreover, even though the court made clear that Walsh could present a note from a psychiatrist to support her request and emphasized that she had not yet established good cause, Walsh never did so.

Under these circumstances, we cannot find an abuse of discretion in the trial court's conclusion that Walsh's oral statements concerning her mental health problems did not establish good cause to continue the trial and thereby override the courts' vital interest in avoiding costly delays.

2. Walsh's Challenges to the Sufficiency of the Evidence Are Waived

Walsh argues that no substantial evidence supports a finding that she committed battery, intentional infliction of emotional distress, or domestic violence against Russell. Because she has not made the requisite showing in any of those respects, we disagree.

In reviewing the sufficiency of the evidence, we presume that the " ' record contains evidence to sustain every finding of fact.' " (*Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 881 (*Foreman*).) It is the appellant's burden to demonstrate that it does not. (*Ibid.*) "In furtherance of this burden, the appellant must fairly summarize all the facts in the light most favorable to the judgment." (*Burch v. CertainTeed Corp.* (2019) 34 Cal.App.5th 341, 349.) "Accordingly, if . . . 'some particular issue of fact is

not sustained, they are required to set forth in their brief *all* the material evidence on the point and *not merely their own evidence*. Unless this is done the error assigned is deemed to be waived.' " (*Foreman*, at p. 881.)

Here, Walsh's opening brief summarizes only her own testimony, not Russell's. By neglecting Russell's testimony—which described symptoms he experienced, how those symptoms would abate in Walsh's absence, a blood test that revealed high levels of lithium in his body, and the statements of a nanny who had witnessed Walsh drugging his wine—Walsh failed "to set forth . . . *all* the material evidence" pertaining to the sufficiency of the evidence for battery, intentional infliction of emotional distress, and domestic violence. (*Foreman*, *supra*, 3 Cal.3d at p. 881.) Accordingly, her claims in those respects are waived. (*Ibid*.)

3. Even if Those Claims Were Not Waived, Substantial Evidence Supports the Jury's Verdict to All Three Torts

Walsh's challenges to the sufficiency of the evidence fail on the merits, as well. We explain below.

a. Standard of Review

In evaluating the record for substantial evidence, we determine whether the evidence, "contradicted or uncontradicted," will support the judgment. (*Bowers v. Bernards* (1984) 150 Cal.App.3d 870, 873–874.) " 'Substantial evidence' is evidence of ponderable legal significance, evidence that is reasonable, credible and of solid value." (*Roddenberry v. Roddenberry* (1996) 44 Cal.App.4th 634, 651.) " ' "The testimony of a [single] witness . . . may be sufficient" [to support a judgment].' " (*In re Marriage of Slivka* (1986) 183 Cal.App.3d 159, 163.) "It is not our role as a reviewing court to reweigh the evidence or to assess witness credibility." (*Thompson v. Asimos* (2016) 6 Cal.App.5th 970, 981 (*Thompson*).)

b. Battery

First, Walsh challenges the sufficiency of the evidence for battery. " 'A battery is any intentional, unlawful and harmful contact by one person with the person of another. . . . A harmful contact, intentionally done is the essence of a battery. . . . A contact is "unlawful" if it is unconsented to. . . .' [Citation.] The elements of a civil battery are: ' "1. Defendant intentionally did an act which resulted in a harmful or offensive contact with the plaintiff's person; [¶] 2. Plaintiff did not consent to the contact; [and][¶] 3. The harmful or offensive contact caused injury, damage, loss or harm to the plaintiff." ' " (*Fluharty v. Fluharty* (1997) 59 Cal.App.4th 484, 497 (*Fluharty*).)

Here, Walsh and Russell resided in New York City and San Francisco, respectively. They met in New York in 2015 and began a dating relationship. Russell testified that in 2016, after a visit from Walsh, he became "severely ill . . . to the point [he] was unable to get out of bed." Soon after giving birth to their daughter in early 2017, Walsh came to San Francisco to stay with Russell. From that time through the middle of the next year, there were "at least a dozen times" when Russell suspected he had been drugged. During some of those times, he went "to the emergency room to get toxicology reports . . . ." According to Russell, "it felt like being knocked out," like "you're going to lose consciousness." Such episodes would occur when Walsh was staying in the same city as Russell, but abate once the two had parted.

In her own testimony, Walsh admitted that on at least two occasions during the same time period, she put the prescription drug Seroquel into Russell's wine without asking his permission or telling him she was doing so. She then "put it on the coffee table" near him, intending that Russell ingest the drug. When a nanny later told Russell about Walsh drugging the wine, the revelation "[e]xplained . . . 90 percent of what [he] had been experiencing

that month": "a very confusing set of symptoms" related to the drug's onset, "the panic [he] would experience upon noticing [he] was drugged, and the subsequent "withdrawal and neuropathy."

A jury hearing that testimony could reasonably find by a preponderance of the evidence that Walsh had battered Russell. Walsh admitted to drugging Russell's wine and placing it near him, intending for him to drink it. And Russell explained the abnormal and unpleasant sensations he experienced around that time. On that basis, it is reasonable to infer that Walsh " ' "intentionally did an act which resulted in a harmful or offensive contact with [Russell's] person." ' " (*Fluharty*, *supra*, 59 Cal.App.4th at p. 497.) That Russell " ' "did not consent to the contact" ' " follows from the testimony showing that he was ignorant of Walsh's conduct and panicked upon feeling the drug's effects. (*Ibid*.) And Russell's testimony regarding his symptoms supports a finding that Walsh's actions " ' "caused . . . harm . . . ." ' " (*Ibid*.)

As for Walsh's contention that she drugged Russell in self-defense, it cannot survive the standard of review operative here. That affirmative defense requires the defendant to have "reasonably believed, in view of all the circumstances of the case, that the plaintiff was going to harm him or her. . . ." (*J.J. v. M.F.* (2014) 223 Cal.App.4th 968, 976.) Here, Russell testified that he never physically harmed Walsh or threatened her with physical harm. If that testimony is credited, then Walsh could not have *reasonably* believed Russell was going to harm her. As we have already observed, "[i]t is not our role as a reviewing court to reweigh the evidence or to assess witness credibility." (*Thompson*, *supra*, 6 Cal.App.5th at p. 981.) Accordingly, we defer to the jury in Walsh's case, which apparently resolved this question of credibility against her.

Finally, in arguing that Russell consented to being drugged, Walsh relies on two cases: *Piedra v. Dugan* (2004) 123 Cal.App.4th 1483 and *Saxena v. Goffney* (2008) 159 Cal.App.4th 316. However, neither case is relevant to her argument. In both *Piedra* and *Saxena*, the defendants were medical doctors and the legal analysis in those cases related to signed consent forms by which the plaintiffs or their guardians *expressly* consented to medical treatment. (*Piedra* at p. 1496; *Saxena* at p. 321.) In contrast, Walsh argues only that Russell rendered *implied* consent.

Unaided by *Piedra* and *Saxena*, Walsh's argument challenging the sufficiency of the evidence for battery comprises a series of assertions unsupported by any legal authority or citations to the record. For that reason, it does nothing to undermine our analysis supporting the verdict. (See *Foreman*, *supra*, at p. 881 [it is appellant's burden to demonstrate the insufficiency of the evidence].)

c. Intentional Infliction of Emotional Distress

Second, Walsh challenges the sufficiency of the evidence for intentional infliction of emotional distress. "The elements of the tort of intentional infliction of emotional distress are: ' "(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. . . ." Conduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.' [Citation.] The defendant must have engaged in 'conduct intended to inflict injury or engaged in with the realization that injury will result.' " (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903; see also *Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050.)

Here, Walsh's extreme and outrageous conduct consisted of her drugging Russell's wine without his knowledge or consent. Her reckless disregard for the probability of causing emotional distress can be inferred from the fact that she accompanied Russell on one of his trips to the emergency room for a toxicology report when he suspected he had been drugged. Walsh therefore had reason to know that Russell believed he was being drugged and that this belief was causing him distress, and she acted with that knowledge when, later, she admittedly drugged him herself. And Russell's testimony regarding his feelings of panic upon feeling the effects of being drugged support the jury's finding that Walsh's conduct caused Russell's emotional distress.

d. Domestic Violence

Third, Walsh challenges the sufficiency of the evidence for domestic violence. Civil Code section 1708.6, subdivision (a) provides: "A person is liable for the tort of domestic violence if the plaintiff proves both of the following elements: [¶] (1) The infliction of injury upon the plaintiff resulting from abuse, as defined in subdivision (a) of Section 13700 of the Penal Code. [¶] (2) The abuse was committed by the defendant, a person having a relationship with the plaintiff as defined in subdivision (b) of Section 13700 of the Penal Code." " 'Abuse' means intentionally or recklessly causing or attempting to cause bodily injury, or placing another person in reasonable apprehension of imminent serious bodily injury to himself or herself, or another." (Pen. Code, § 13700, subd. (a).)

Here, Walsh does not contest the jury's finding that she and Russell had the requisite relationship for the tort of domestic violence; only the "injury" finding is contested. But Walsh committed abuse because she placed Russell "in reasonable apprehension of imminent serious bodily injury to

himself" (Pen. Code, § 13700, subd. (a)) by inducing the panic Russell experienced upon noticing he had been drugged. That abusive conduct resulted in injuries that included Russell's symptoms of "withdrawal and neuropathy." Walsh offers another explanation for those symptoms—Russell's pre-existing "mental health issues"—but "[u]nder the substantial evidence standard of review, 'where two or more different inferences can reasonably be drawn from the evidence, this court is without power to substitute its own inferences for those of the [trier of fact] and decide the case accordingly.' " (*Escobar v. Flores* (2010) 183 Cal.App.4th 737, 752.)

DISPOSITION

The judgment is affirmed. Russell is entitled to recover his costs on appeal.

GOLDMAN, J.

WE CONCUR:

STREETER, Acting P. J.
HIRAMOTO, J. *

* Judge of the Superior Court of California, County of Contra Costa, assigned by the Chief Justice pursuant to article VI, section 6 of the California Constitution.

AFFIDAVIT OF SERVICE

I, the undersigned, declare the following. I am over the age of eighteen (18) and am not a party to this action.

On the date set forth below, I served the document(s) entitled:

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO

CASE NO. CGC-20-588105

DELCARATION OF STEPHEN RUSSELL IN RESPONSE TO ORDER TO SHOW CAUSE

STEPHEN RUSSELL (pro se)
[redacted]
Sparks, NV 89431

X [BY ELECTRONIC TRANSMISSION] I submitted a copy to email addresses:
[redacted].

X [BY FEDERAL EXPRESS MAIL] I sent a copy through federal express mail to the following addresses: [redacted], Chappaqua, New York 10514, and via Confidential Address Service Albany, NY.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

DATED: October 26, 2023

[redacted]

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO

400 MCALLISTER STREET, SAN FRANCISCO, CA 94102-4514

STEPHEN RUSSELL

PLAINTIFF (S)

VS.

STEPHEN WALSH et al

DEFENDANT (S)

Case Management Department 610
Case Management Order

NO.: CGC-20-588105

Continued Order to Show Cause

TO: PLAINTIFF'S COUNSEL AND/OR SELF-REPRESENTED PLAINTIFF(S)

The Oct-31-2023 ORDER TO SHOW CAUSE is canceled.

YOU ARE HEREBY ORDERED TO APPEAR in Department 610 on Jan-30-2024 at 10:30 am, pursuant to Local Rule 3.0 C to show cause why this action should not be dismissed or why sanctions should not be imposed for failure to:

file proof of service on defendant(s) and obtain answer(s), or enter default(s) as to the First Amended Complaint; pay outstanding sanctions.

*****NOTICE: IMPENDING MANDATORY DISMISSAL PURSUANT TO CCP SECTION 583.210 and SECTION 583.250.*****

*****NOTE: Please file a notice of change of address. Otherwise, plaintiff's mailing address remains in New York per 6/29/22 Order Granting Motion to Withdraw.*****

CRC 3.110(i) requires that responsive papers to an order to show cause must be filed and served at least 5 calendar days before the hearing.

However, it would facilitate the issuance of a case management order prior to the Order to Show Cause hearing if the Response to Order to Show Cause is filed and served twenty (20) days before the Order to Show Cause hearing.

PLAINTIFF(S) must serve a copy of this notice on all parties not listed on the attached proof of service within five (5) days of the date of this order.

You may check the case information at https://sf.courts.ca.gov/online-services/case-information before the hearing to determine whether your compliance has taken the order to show cause off calendar.

DATED: OCT-27-2023

ANNE-CHRISTINE MASSULLO

JUDGE OF THE SUPERIOR COURT

CERTIFICATE OF SERVICE BY MAIL

I, the undersigned, certify that I am an employee of the Superior Court of California, County of San Francisco and not a party to the above-entitled cause and that on OCT-27-2023 I served the attached Continued Order to Show Cause by placing a copy thereof in an envelope addressed to all parties to this action as listed below. I then placed the envelope in the outgoing mail at 400 McAllister Street, San Francisco, CA 94102, on the date indicated above for collection, sealing of the envelope, attachment of required prepaid postage, and mailing on that date, following standard court practice.

Dated : OCT-27-2023 By: SHIRLEY LE

STEPHEN RUSSELL
C/O BRIAN WALLER, PECKER & ABR
1325 AVE OF THE AMERICAS 10 FL
NEW YORK, NY 10019

STEPHEN WALSH
[redacted]
CHAPPAQUA, NY 10514

ATTORNEY OR PARTY WITHOUT ATTORNEY *(Name, State Bar number, and address):*
STEPHEN RUSSELL
[redacted]
SPARKS, NV 89431

TELEPHONE NO.: [redacted] FAX NO. *(Optional):*
E-MAIL ADDRESS *(Optional):* [redacted]
ATTORNEY FOR *(Name):* n/a

FOR COURT USE ONLY

ELECTRONICALLY
FILED
Superior Court of California, County of San Francisco
10/30/2023
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF San Francisco
STREET ADDRESS: 400 MCALLISTER STREET
MAILING ADDRESS:
CITY AND ZIP CODE: SAN FRANCISCO 94102
BRANCH NAME: CIVIC CENTER COURTHOUSE

PLAINTIFF/PETITIONER: STEPHEN RUSSELL

DEFENDANT/RESPONDENT: STEPHEN WALSH ET AL

CASE NUMBER:
CGC-20-588105

JUDICIAL OFFICER:
ANNE CHRISTINE MASSULLO

DEPT.:
610

NOTICE OF CHANGE OF ADDRESS OR OTHER CONTACT INFORMATION

1. **Please take notice** that, as of *(date):*
   - [x] the following self-represented party or
   - [ ] the attorney for:
     - a. [ ] plaintiff *(name):*
     - b. [ ] defendant *(name):*
     - c. [ ] petitioner *(name):*
     - d. [ ] respondent *(name):*
     - e. [ ] other *(describe):*

   has **changed his or her address** for service of notices and documents or other contact information in the above-captioned action.

   - [ ] A list of additional parties represented is provided in Attachment 1.

2. The **new address** or other contact information for *(name):*
   is as follows:
   - a. Street: [redacted]
   - b. City: SPARKS
   - c. Mailing address *(if different from above):*
   - d. State and zip code: NV 89431
   - e. Telephone number: [redacted]
   - f. Fax number (if available):
   - g. E-mail address (if available): [redacted]

3. **All notices and documents** regarding the action should be sent to the above address.

Date: 10/26/2023

Stephen G Russell
(TYPE OR PRINT NAME)

(SIGNATURE OF PARTY OR ATTORNEY)

Form Approved for Optional Use
Judicial Council of California
MC-040 [Rev. January 1, 2013]

Cal. Rules of Court, rules 2.200 and 8.816
www.courts.ca.gov